

2025 PLD 163
[Peshawar High Court]

Judges:

Honorable Justice Ishtiaq Ibrahim, C.J. and Sahibzada Asadullah



SHANDANA GULZAR KHAN

versus

FEDERATION OF PAKISTAN through Secretary Interior, Islamabad



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ISHTIAQ IBRAHIM, C.J.---By invoking the constitutional jurisdiction of this court under Article 199 of the Constitution of Islamic Republic of Pakistan 1973 ("Constitution"), Shandana Gulzar Khan, the petitioner, an elected Member National Assembly ("MNA") NA-30 Peshawar, is aggrieved from a notice dated 09.03.2024 ("impugned notice"), issued under section 160, Cr.P.C. by Enquiry Officer FIA/CCRC, Lahore, whereby she been directed to appear in person before the Enquiry Officer in an Enquiry No.598/24 pending at Cyber Crime Reporting Centre Lahore, situated at Building 8-B Block G, Gulberg-II Lahore, for recording her statement. The impugned notice is reproduced below:-

FEDERAL INVESTIGATION AGENCY

CYBER CRIME REPORTING CENTER

8-B, Block G, Gulberg II, Lahore

NOTICE FOR ATTENDANCE UNDER SECTION 160, Cr.P.C.

To, Name:

Shandana Gulzar Khan daughter of Gulzar Khan

resident of Village Mashogagar, Kohat Road Peshawar.

CNIC: 61101-4516665-2.

Subject:- ENQUIRY NO. 598/24 OF FIA, CYBER CRIME REPORTING CENTRE, LAHORE.

FIA, Cyber Crime Reporting Centre, Lahore is conducting a probe on the above titled enquiry. Details are mentioned below:---

Name of complainant: Shoaib Mirza

Name of the Alleged: Shandana Gulzar Khan

Enquiry No. 598/24

Gist of allegation: Highly intimidating campaign

against State functionaries and

creating violence in public and

society through information

system

2. Therefore, you are directed to appear in person before

the undersigned to record your statement at FIA Cyber Crime

Reporting Centre on 14.03.2024 at 02.00 PM, situated at Building 8-B Block G, Gulberg-II Lahore for fair trial process. You are also directed to bring your original CNIC and the relevant record/documents with you.

In case of non-appearance, it will be assumed that you have nothing to present or state in your defence.

Ali Raza

SUB INSPECTOR

ENQUIRY OFFICER

FIA/CCRC/LHR

Dated:09.03.2024

Non-compliance to the notice is punishable under law, therefore your willful non-obedience of the order will render you liable for criminal proceedings under section 174, P.P.C. 1860.

2. It is averred in the writ petition that the impugned notice having no date, time, place of occurrence, gist of allegations, sections of law and other necessary details is against the mandate of Circular No.FIA/CCWHQ/DIR/OPS/ISB/2021/6035-42 dated 28.06.2021, issued in pursuance of judgment rendered by the worthy Islamabad High Court, Islamabad, in Writ Petition No.2939/2020 as well as various rules of the Prevention of Electronic Crimes Investigation Rules, 2018. It is further averred that the impugned notice being unlawful, against the law, void ab initio, in conflict with the fundamental rights of the petitioners guaranteed under the Constitution, based on mala fide and political victimization is liable to be set at naught, hence, the petitioner seeks issuance of the following writ:-

i. The respondents may be required to act in accordance with law and if they intend to initiate any inquiry then they must disclose sufficient information in the notice so that the petitioner know the purpose for being summoned and the respondents must inform the petitioner of the fact, point, allegation, offence, date of registration of enquiry and specified matter in the notice so that the petitioner can furnish/state her position in response thereto.

ii. Consequent to above, the impugned notice may be set at naught, dismissed and set-aside with a direction to the respondents to observe the due process and if they intend to proceed with the so-called enquiry, the proceedings to that effect may be conducted and carried out in the Khyber Pakhtunkhwa where the petitioner permanently resides, elected as the Member National Assembly and remains with the electorate to perform her function as their chosen representative and the same is the place to be deemed as the core of her entire activities carried out by her as public service in the public interest.

iii. Any other relief which though has not been specifically prayed for but is found appropriate may also be granted to the petitioner.

Besides, the petitioner has also sought the following interim relief.

"Interim Relief. In the meanwhile the operation of impugned notice dated 09.03.2024 and the further proceeding to that effect in the enquiry No.598/24 of FIA Cyber Crime may please be suspended till the final disposal of case in hand with a direction to the respondent that no adverse action shall be taken against the petitioner".

3. On 18.03.2024 when the instant petition came up for hearing, Mr. Sanaullah, the worthy DAG, representing the Federation, raised the following two preliminary objections:-

i. That as the impugned notice has been issued by the Enquiry Officer FIA Circular Lahore, therefore, cannot be questioned before this court in constitutional jurisdiction under Article 199 of the Constitution because of lack of the territorial jurisdiction in the matter:

ii. That as enquiry against the petitioner is at very initial stage; therefore, in such premature stage constitutional jurisdiction of a High Court under Article 199 of the Constitution cannot be pressed into service:

4. Since complaint against the petitioner was not before the court, therefore, this court directed respondents Nos.2 and 3 to submit para-wise comments accompanied by complete record of the inquiry in consequence of which the impugned notice has been issued and the case was posted to 25.03.2024; however, till then, interim relief, that "no adverse action shall be taken against the petitioner", was granted in her favour.

5. In compliance of the order (ibid), the respondents have filed the requisite comments, wherein the following facts of the case has been furnished:-

"That FIA CCRC, Lahore has initiated an enquiry against the petitioner on the basis of written complaint filed by one Shoaib Mirza complainant wherein he has alleged that a video featuring interview of the petitioner was circulated wherein she has accused Maryam Nawaz (The sitting chief Minister of Punjab) for murder of one Zille Shah deceased while the local police of the Punjab had already concluded investigation into Zille Shah's death case; that petitioner's involvement in disseminating such accusations constitutes as highly intimidating campaign against the State functionaries.

That, during the course of the enquiry, a technical report was obtained from Technical Expert, confirming the existence of the video on the Twitter Account of the petitioner. Subsequently, impugned notice was issued to the petitioner by the Enquiry officer directing her to appear in person before him for recording statement on 14.03.2024.

Further more an intimation letter under section 52(2) of the Majilis-e-Shoora Privileges and Immunities Act, 2023 was dispatched to the Secretary of the National Assembly, for information.

It is asserted in the comments that the impugned notice issued to the petitioner by the Enquiry Officer is entirely lawful and in accordance with due process and the relevant legal provisions. It is pertinent to mention that the said notice maintains the

principles outlined in the judgment of *Rana Muhammad Arshad v. Federation of Pakistan*, contrary to the petitioner's assertions".

6. Learned counsel for the petitioner argued that the impugned notice has been issued by the Enquiry Officer of the Federal Investigation Agency (FIA) Lahore in consequence of pending inquiry and the FIA is functioning/running its affairs under the Federation all over the country; that if a Body, Institution or an Authority being run/ functioning under the Federal Government, passes any order or initiates any action and such order or action affects any person at the place other than the place of the Office of such Body, Authority or Institution, such aggrieved person shall have a cause of action to agitate about his/her grievance within the territorial jurisdiction of the High Court in which the said order/action is affecting him/her; that petitioner is permanent resident of Badh Ber Peshawar and the impugned order is affecting her; that nothing in black and white is available on file to show as to where the alleged offence was committed and where the twitter account of the petitioner was used. He further contended that petitioner is a lady elected MNA of NA-30 Peshawar and is dealing with her day to day affairs in the Province of the Khyber Pakhtunkhwa; therefore, this court has got the jurisdiction to entertain the instant petition. In support of his arguments he placed reliance on the judgments rendered by the Hon'ble Supreme Court in case titled, "*Federal Government through Secretary Interior Government of Pakistan v. Ms. Ayyan Ali and others*" (2017 SCMR 1179).
7. On merit, he contended that the complaint before FIA is politically motivated with mala fide intention just to harass and victimize the petitioner; that the complaint does not bear the date and diary number of the office of FIA as well as the date, time and place of occurrence; that allegations in the impugned notice are different from the allegations in the complaint which manifestly shows the mala fide intention of the respondents just to harass the petitioner, hence, requested for setting aside of the impugned notice.
8. Conversely, the worthy DAG contended that as the enquiry is being conducted by the Cyber Crime Reporting Centre Lahore, therefore, this court has got no territorial jurisdiction to entertain the instant petition. In support of his arguments he placed reliance on the judgments of worthy Islamabad High Court Islamabad, reported as (2017 PCr.LJ 1540) and (2016 PCr.LJ 1056) and worthy Sindh High Court (PLD 2020 Sindh 09).
9. On merit he contended that as the enquiry is in its initial stage and the petitioner has been directed by the Enquiry Officer to appear in person before him for recording statement and it is yet to be determined after conclusion of the enquiry as to whether the petitioner is made accused or a witness; therefore, in such a premature stage constitutional jurisdiction under Article 199 of the Constitution of the High Court cannot be pressed into service. In support of his arguments he placed reliance on the judgments reported as 2021 MLD 1330 and 2022 PCr.LJ 245.
10. We have heard the arguments of learned counsel for the parties advanced at the bar and perused the record annexed with the petition as well as gone through the law on the subject.
11. First we are going to meet the question of jurisdiction of this court. In the year 2016 the Federal Government Promulgated Prevention of Electronic Crimes Act, 2016 ("PECA"). Object of the PECA, as is manifest from its preamble, was to prevent unauthorized acts with respect to information system and provide for related offences as well as mechanisms for their investigation, prosecution, trial and international cooperation with respect thereof and for matters connected therewith or ancillary thereto. In exercise of powers conferred by section 51 of the PECA read with section 29 thereof, the Federal Government was pleased to make the Prevention of Electronic Crimes Investigation Rules, 2018 ("PECA Rules"). Under Rule 3(1) of the PECA Rules, the Federal Investigation Agency (FIA) has been designated as investigation agency for the investigation of offences under the Prevention of PECA and it shall discharge its function under the Act and the Rules through the Cyber Crime Wing under the supervision of the Director General. Under Rule 5 of the PECA Rules, the Director General is responsible for overall administration of the Cyber Crime Wing and is authorized to exercise the powers of the investigation Agency under the PECA 2016. The impugned notice has been issued against the petitioner under section 160, Cr.P.C., but it does not contain the gist of allegation, therefore, is against the circular No.FIA/CCW-HQ/DIR, OP S/I SB/ 2021/56035-2 dated 28.06.2021 and Standing Operating Procedure issued thereafter wherein it has been made obligatory upon the FIA to specifically state the section of law of the alleged offence, the date of registration of enquiry, fact, point and specified matter. The impugned notice is also silent about the date, day, time and place of the occurrence. Similarly, the complaint does not bear the date of institution and diary number of the office. In such eventualities, the place of occurrence is still unknown. It is also not discernible from the available record that the place of occurrence as falling within the original area of the inquiry Officer. Besides, the FIA being a Federal Institution is working/functioning throughout the country. The

object of determination of jurisdiction is the first step of any/all adjudication(s). A similarly structured question about territorial jurisdiction came up before the Apex Court in the case of *Asghar Hussain*¹. The High Court of the East Pakistan had dismissed a petition that impugned order of the Tribunal/EC in respect of provincial constituency of East Pakistan. The august Apex Court allowed the appeal against the judgment of the High Court of East Pakistan in the following manner (terms):--

"The decision given by the High Court of East Pakistan that it has no jurisdiction to issue a writ or a direction to the election Commission of Pakistan is thus unreasonable in law from every point of view. The election Commission is "a person" or "authority" which exercises in the Province of East Pakistan functions in connection with their affairs of the Centre namely, election to the office of President, National Assembly and the Provincial Assemblies and for holding a Referendum as provided for in the Constitution. In that, the Commission is subject to the jurisdiction of High

Court under Article 98(2)(a)(1) notwithstanding that its main office and secretariat are located in the Province of West Pakistan".

In the case of *Federal Government*², the worthy Sindh High Court was approached against a notification issued by the Federal Government whereby on the recommendation of the Punjab Government, Ms. Ayan Ali, was prevented from departure at Karachi Airport for being enlisted in the Exit Control List (ECL). The matter eventually arrived before the Hon'ble Supreme Court and the Hon'ble apex court in the judgment (supra) rejected the argument of the Federal Government relating to the territorial jurisdiction of Sindh High Court by relying upon the LPG's case (2009 CLD 1498) and held as under:--

"As regard the question of territorial jurisdiction, it hardly need emphasis that the impugned notification/memorandum has been issued by the Federal Government which functions all over the country and since the respondent No.1 resides in the Karachi and has a right and choice to proceed abroad through Jinnah International Airport Karachi and in fact at least twice earlier she had proceeded to go abroad through Jinnah International Airport Karachi, though she was stopped owing to the earlier notification/memorandum and therefore, the embargo placed on her leaving the country has in fact taken place at Karachi, which prevention in all likelihood was to be repeated at Karachi in pursuance of the third notification/memorandum and thus giving rise to a cause of action against a third notification/memorandum at Karachi because of its taking effect there. It is now well settled that the Federal Government, though may have exclusive residence or location at Islamabad would still be deemed function all over the country". (emphasis supplied).

Similarly, in case of Messrs Al-Iblagh Limited³, the issue of

territorial jurisdiction of the High Court was tackled in the following manner:--

"The Central Government has set up a Copyright Board for the whole of Pakistan and it performs functions in relation to the affairs of the Federation in all the Provinces. Hence, any order passed by it or proceedings taken by it in relation to any person in any of the four Provinces of Pakistan would give the High Court of the Province, in whose territory the order would affect such a person, jurisdiction to hear the case.

It was further observed that:--

"We agree and are of the opinion that both the Lahore High Court as well as the Sindh High Court had concurrent jurisdiction in the matter and both the Courts could have entertained a Writ Petition against the impugned orders in

the circumstances of this case. We, therefore, hold that the Lahore High Court has illegally refused to exercise jurisdiction in this case. The case will, therefore, go back to the Lahore High Court for the decision of the Writ Petition filed by the appellant before it for decision on merits, in accordance with law".

In the case of LPG Association of Pakistan through Chairman⁴, the territorial jurisdiction of Hon'ble Lahore High Court, Lahore, was questioned on the ground that the contesting respondents were functioning at Islamabad; while the impugned notice was issued by the Commission at Islamabad and, as such, the Hon'ble Lahore High Court had no jurisdiction to entertain the petition. However, the Hon'ble Lahore High Court, Lahore, rejected the objection in the following terms:--

"From the judgments cited at the Bar on both the sides, the portions whereof have been extensively reproduced, the following ratio is deducible:--

(A) The Federal Government or any body politic or a corporation or a statutory authority having exclusive residence or location at Islamabad with no office at any other place in any of the Provinces, shall still be deemed to function all over the country.

(B) If such government, body or authority passes any order or initiates an action at Islamabad, but it affects the "aggrieved party" at the place other than the Federal capital, such party shall have a cause of action to agitate about his grievance within the territorial jurisdiction of the High Court in which said order/action has affected him.

(C) This shall be more so in the cases where a party is aggrieved or a legislative instrument (including any rules, etc) on the ground of it being ultra vires, because the cause to sue against that law shall accrue to a person at the place where his rights have been affected. For example, if a law is challenged on the ground that it is confiscatory in nature, violative of the fundamental rights to property; profession, association etc, and any curb has been placed upon such a right by a law enforced at Islamabad, besides there, it can also be challenged within the jurisdiction of the High Court, where the right is likely to be affected:

In this context, illustrations can be given, that if some duty/tax has been imposed upon the withdrawal of the amounts by the account holders from their bank account and the aggrieved party is maintaining the account at Lahore, though the Act/law has been passed at Islamabad, yet his right being affected where he maintains the account (Lahore), he also can competently initiate a writ petition in Lahore besides Islamabad; this shall also be true for the violation of any right to profession, if being conducted by a person at Lahore, obviously in the situation, he shall have a right to seek the enforcement of his right in any of the two High Courts.

(D) On account of the above, both the Islamabad and Lahore High Courts shall have the concurrent jurisdiction in certain matters and it shall not be legally sound or valid to hold that as the Federal Government etc. resides in Islamabad, and operates from there; the assailed order/action has also emanated from Islamabad, therefore, it is only the Capital High Court which shall possess the jurisdiction. The dominant purpose in such a situation shall be irrelevant, rather on account of the rule of choice, the plaintiff/petitioner shall have the right to choose the forum of his convenience".

12. After thoroughly examining the above-referred case law, we

are firm in our view to hold that an action of a constitutional or

Federal Authority that affects a person or group of persons in a particular Province, can be challenged in the High Court of the Province in constitutional jurisdiction under Article 199 of the Constitution where the cause of action arose, or the effect was received/suffered, regardless of the location of the head-office of such Authority. Therefore, we hold that no doubt FIA is the Federal Institution/body and the impugned notice has been issued by the FIA Cyber Crime Lahore, but the petitioner being permanent resident of the Peshawar Khyber Pakhtunkhwa, a lady MNA and affected by the impugned notice in this Province can question the impugned notice before this court, particularly, in the circumstances when it is not certain from record that from where the alleged material was generated, uploaded and made viral on the alleged twitter Account of the petitioner. In this view of the matter, this court has got the territorial jurisdiction to entertain the instant petition.

13. Adverting to the substance of the issue at hand, the petitioner contends that she is being unfairly targeted for political reasons under the guise of prosecution. She claims that the complaint supposedly triggering the issuance of the impugned notice is highly questionable, lacking crucial details such as a date, diary receipt number and essential information regarding the alleged offense such as the gist of allegations, the day, date, time and place of occurrence; that it merely summarizes the accusation as a "Highly intimidating campaign against State functionaries and creating violence in public and society through information system." Contrary, in the comments the respondents have furnished allegations of the complaint against the petitioner

which are totally different from the one mentioned in the impugned notice.

14. According to the principles of Natural Justice, constitutional provisions, and statutory safeguards, an authority must promptly notify an individual of the charges against him/her allowing adequate time to prepare a defense or gather evidence, as necessary. At the cost of repetition, impugned notice is excessively ambiguous, making it difficult to provide a suitable response. The august Supreme Court, in the case titled "Dr. Arsalan Iftikhar v. Malik Riaz Hussain and others" [PLD 2012 Supreme Court 903, while interpreting the provisions of the National Accountability Ordinance, 1999 has observed and held as follows:-

"The clear and unambiguous pronouncements given in the case titled Ghulam Hussain Baloch and another v. Chairman, National Accountability Bureau Islamabad and 2 others (PLD 2007 Karachi 469) were violated by NAB in its two letters. In the cited precedent NAB has been given express guidelines as to its responsibilities while summoning or requiring the attendance of persons/witnesses in an inquiry. As per ratio of the case, before summoning a person to attend, NAB was duty bound to identify and particularize the information sought from any witness etc. and to state the nexus between such information and the subject of the inquiry being conducted by NAB. It was observed by the Court that "while calling [for] the information from any person, the person must be informed of the fact, point, allegation, offence, name of accused, specified matter, if any, concerning the matters ... in the notice so that the person can furnish such information"

Commenting on the ruling of the apex court, Islamabad High Court has remarked as follows:

"5. It is noted that the above guidelines regarding the responsibilities of an investigating officer while summoning a person would also be attracted in case of proceedings relating to criminal offences dealt with by the Agency. The officials, particularly investigating officers of the Agency, are public functionaries vested with expansive powers to investigate and inquire into criminal offences. It is their duty to ensure that their actions are not in breach of the essential and elementary principles of fairness. It is their obligation to exercise coercive powers in such mode and manner that does not appear to be arbitrary nor that powers are being used recklessly for other than bona fide purposes. . . ."

Next the court proceeded to issue guidelines to be observed by the respondents in issuing processes, and which, purportedly, were implemented by the respondents:

Keeping in view the above discussion and having regard to the paramount public importance of protecting the constitutionally guaranteed rights, particularly under Articles 19 and 19 A of the Constitution, it is observed and directed as follows;

i. The Director General of the Agency is expected to formulate guidelines for the investigating officers, inter alia, having regard to the principles highlighted in the aforementioned judgment of the august Supreme Court. It is further expected that the Agency will consider prescribing special guidelines regarding proceedings against persons engaged in the profession of journalism on account of the profound effect on the freedom of press and independence of a journalist when the coercive powers are abused, giving rise to a perception of retaliation to professional functions performed. In this regard the Agency may consult the key stake holders. "

The respondents/FIA, while adhering to the directives of the Islamabad High Court, issued a circular outlining the essential protocols to be followed by the Agency when issuing processes, etc. A copy of the circular dated 28/06/21, is on file as Annexure-E with the comments. Among the directives to be followed by the FIA and its functionaries in conducting investigation etc. is one specifying the obligation to inform the summoned individual about the essence of the allegation, etc. The directive reads as: Gist of allegations (facts, point, section of law applicable and specified matter).

Respondents claim that they have adhered to and complied with the said obligation. As referred above, the impugned notice contain the gist of following allegation:

Gist of allegation: **Highly intimidating campaign against State functionaries and creating violence in public and society through**

This court differs with the respondents' assertion of meeting the criteria outlined for issuing processes in the provided circular. Upholding the principle of natural justice, one of the oldest tenets, it is imperative that individuals are promptly informed of the specific charge or allegations against them at the outset of any legal proceedings. Referring to the specifics of the current case, the circular, which contains guidelines, clearly mandates that factual details must accompany the gist of the allegation provided to the respondent or accused. Mere presentation of a generic statement regarding the commission of an offense cannot be considered sufficient to convey pertinent information or fulfill the respondents' mandated responsibilities. For example, an individual implicated or suspected of involvement in a robbery should be informed of the precise particular facts of the offense rather than being notified

of the suspicion harbored by the body of his involvement in a serious offense against life and property. Labels such as "offense against life and property" or "serious campaign for intimidation and violence" categorize offenses rather than specifying a particular offense. Under the constitutional safeguard of the right to a fair trial, individuals prosecuted or facing legal proceedings have the right to be informed of the charges against them. The specifics of the case are crucial, particularly in criminal charges, as each case differs in its factual context. An executive body tasked with investigating offenses bears both moral and legal obligations to proceed with caution, diligence, and respect for the constitutional rights of the public.

Authoritatively summoning an individual without adequately informing them of the nature of the charge represents the misuse of power, which is unequivocally prohibited in a well-functioning justice system.

15. For what has been discussed above, we find the impugned notice in violation to petitioner's fundamental right to due process of law. The mechanism adopted by the respondents being against the law, smells mala fide on their part, therefore, the impugned notice is liable to be set at naught. We are mindful of the fact that superior courts normally do not interfere in the matter when it is in investigation phase, but when mala fide is floating on the face of record then in such like situation the courts cannot sit as silent spectators. In case titled, "Anwar Ahmad Khan v. The State" (1996 SCMR 24) it has been held by the Hon'ble Supreme Court that where investigation is mala fide or without jurisdiction, the High Court in exercise of its constitutional jurisdiction under Article 199 is competent to correct such proceedings and pass necessary order to ensure justice and fair-play. The Investigating Authorities do not have the entire and total authority of running investigation according to their whims. Guidance may also be derived in this regard from cases titled, "Shahnaz Begum v. Honourable Judge of the High Court of Sindh and Balochistan (PLD 1971 SC 677), "Raja Rustam Ali Khan v. Muhammad Hanif" (1997 SCMR 2008), "Ghulam Sarwar Zardari v. Piyari Ali alias Piyaro" (2010 SCMR 624).
16. Accordingly, this writ petition is allowed. The impugned notice dated 09.03.2024 issued by Enquiry Officer FIA/CCRC Lahore in Enquiry No.598/24 is hereby set aside.

JK/15/P Petition allowed.

